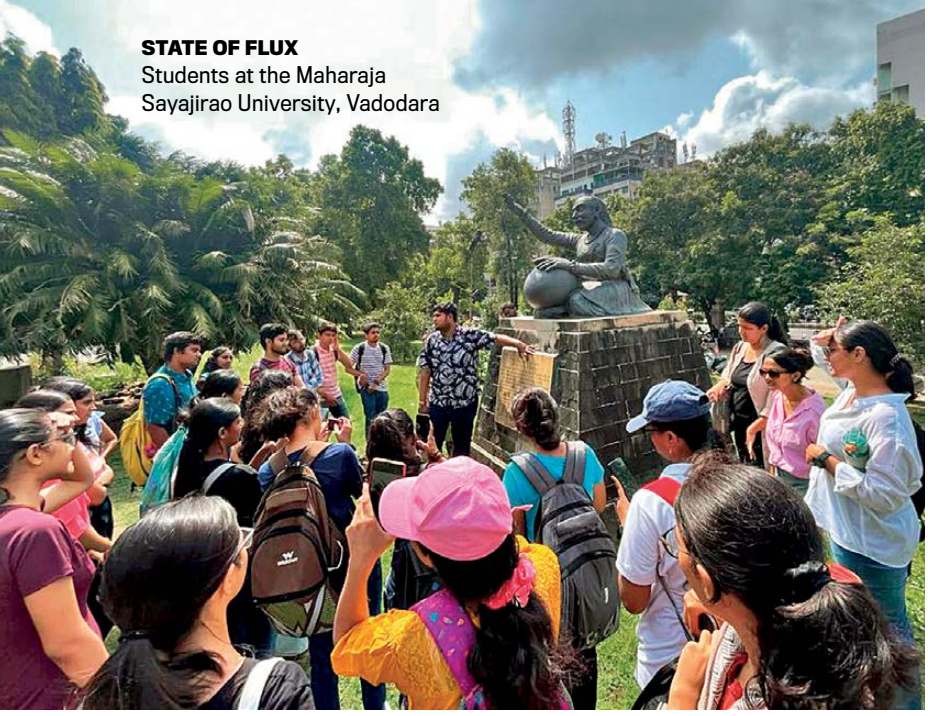


STATE OF FLUX
Students at the Maharaja Sayajirao University, Vadodara

GUJARAT

CAMPUS CONTROL

By Jumana Shah

The Gujarat assembly on September 16 passed the controversial Public Universities Bill, 2023, which repeals 11 separate laws concerning as many public universities in the state and instead lays down common guidelines for their governance. The bill was introduced by the Bhupendra Patel government with the aim of aligning the state's higher education with the National Education Policy (NEP), 2020. "Better governance, better academic standards, enhancement of quality of education for academic autonomy and excellence", and "regulating higher education" and "nonagricultural, non-medical and non-sectoral universities in the State of Gujarat in more effective manner" are the stated objectives. The Patel government no doubt seems to have taken care—and rather zealously at that—of the 'regulation' aspect, but it's the irony of the 'autonomy' part that critics, including academicians and opposition parties, are decrying.

The most striking aspect of the bill is that it replaces the two key elected bodies in public universities, that is, Syndicates and Senates, with a 'Board of Management' (BoM), which will be the top decision-making unit. Its members—whose term shall be two and a half years—will be appointed by the vice-chancellor and the government. Among other things, the bill allows the BoM to lease or transfer university property too.

Further, the Governor will be the de facto chancellor of 10 universities, though an exception has been made for Vadodara's Maharaja Sayajirao University, where a member of the royal family will continue as the chancellor. The bill has also introduced an odd phrase that says the V-C of any university can be removed if they are found to be "working against the government or the interest of education", or if they are involved in politics; it's the government that gets to decide whether a party or organisation is "political" in nature.

MANY FEAR THAT GUJARAT'S PUBLIC UNIVERSITIES BILL WILL PUT UNIVERSITIES AT THE MERCY OF THE GOVERNMENT AND SEVERELY RESTRICT THEIR AUTONOMY

Many fear that the bill effectively puts public universities at the mercy of the state government. "Such crucial decisions [like the transfer/ lease of university property] about a university funded by taxpayers' money will be taken by a Board that has been appointed by the V-C. Where is the space for dissent?... [The BoM] will only speak the language of the V-C, who, it is expressly stated in the bill, will be a representative of the government," says Gujarat Congress chief Shaktisinh Gohil.

That's not the only concern. Students are worried that the elimination of Senates and Syndicates, which together devise the norms for the functioning of various colleges affiliated to a university, will spell the end for student politics and, ultimately, student represenation too. Both Congress's National Students Union of India (NSUI) and the Rashtriya Swayamsevak Sangh's (RSS) Akhil Bharatiya Vidyarthi Parishad (ABVP) have raised concerns about it. Over 5,000 teachers have submitted memorandums for its withdrawal, says Rajendra Jadav, president of the Gujarat Rajya Adhyapak Mahamandal. "The key stakeholders—teachers and students—haven't been consulted. Centralisation of power for appointments without elected representatives has crushed the democratic process.... Without autonomy, colleges will prefer affiliating with private universities and charge higher fees, making education unaffordable for the poor," he adds.

Gujarat's higher education minister, Rushikesh Patel, had in the state assembly termed the bill a "milestone" that would "fulfil all the requirements of a university for higher education in the 21st century". While that may indeed be a noble goal, the apprehensions raised against it and the government's seemingly unilateral approach have certainly left many in doubt. ■